

## Rajendra Nath Pal v. State of U.P.

Allahabad High Court (Lucknow Bench) · Division Bench · 15 April 2025 · 2025:AHC-LKO:21028-DB · WRIT - C No. - 3524 of 2025 · **Writ disposed of; no interference with recovery certificate.**

### HEADNOTE

The Lucknow Bench declined to interfere with a September 2021 recovery certificate for alleged electricity theft where the underlying Section 126 assessment, said to have been passed in 2020, had not been challenged. The petitioner was left to seek installment facility under clause 6.14 of the Electricity Supply Code, 2005 or other permissible remedies.

### FACTUAL SUMMARY

The petitioner was alleged, on the licensee's case, to have committed electricity theft by drawing supply directly from a transformer. A recovery certificate for more than Rs. 2.5 lakh issued in September 2021 was under challenge. Counsel for opposite party no. 4 stated that an assessment under Section 126 of the Electricity Act, 2003 had been passed in 2020. The alleged incident was of 2021. The writ did not impugn that assessment order.

### HOLDING-UNITS

#### HOLDING-UNIT · EA2003::126

unchallenged s.126 assessment; recovery certificate

#### HOLDING

A writ against a recovery certificate for alleged electricity theft will not be entertained where the Section 126 assessment order has not been challenged. ¶ 3

#### HOLDING-UNIT · UP-2005::6.14

installment facility for dues

#### HOLDING

The petitioner may apply to the Executive Engineer under clause 6.14 of the Electricity Supply Code, 2005 for installments to pay the dues, or pursue other permissible remedies. ¶ 4